

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 16, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV416906	Emilia Arroyo vs Juan Manuel Salas, Jr.	Motion for Leave to File to Amended Complaint On November 6, 2025, Plaintiff Emilia Arroyo filed a motion for leave to file a Second Amended Complaint (“SAC”). The motion is accompanied by a proof of electronic service on that same day to defense counsel. The motion is unopposed. Per Code of Civil Procedure section 1005(b), opposition papers were due on July 2, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). “Leave to amend is liberally allowed.” (<i>Bettencourt v. Hennessy Industries, Inc.</i> (2012) 205 Cal.App.4th 1103, 1111; Code of Civil Procedure 473). “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court of Los Angeles County</i> (1959) 172 Cal.App.2d 527, 530). Based on the foregoing, the unopposed motion is GRANTED. Plaintiff is to file her SAC within twenty days of this hearing date. The Court will provide the Order.
<u>LINE 2</u>	23CV423546	Owen Buckvar et al vs Bernard Buckvar	Motion to Determine Value OFF CALENDAR. This matter has been assigned for trial with the Honorable Lori Pegg commencing on July 16, 2026. This motion will therefore be heard by Judge Pegg in Department 21.

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LAW AND MOTION TENTATIVE RULINGS

			On October 28, 2025, Plaintiffs Owen and Irina Buckvar filed this motion to determine value, specifically requesting for an Order for the following: (1) to appoint an appraiser to determine the fair market value of the real property located at 10757 Vista Drive, Cupertino, California 95014 (the “Property”), (2) set a hearing to determine the fair market value, or alternatively to order the Property to be sold, and (3) to send a buyout notice with a deadline for compliance—under Code of Civil Procedure sections 872.720, 872.810, 873.010, 874.316, 874.317, 874.318. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on that same day. The motion is unopposed. Per Code of Civil Procedure section 1005(b), opposition papers were due on July 2, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Given the posture of the case being assigned to a trial department, this motion will be heard in front of the Honorable Lori Pegg.
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LAW AND MOTION TENTATIVE RULINGS

<u>LINES</u> <u>3-5</u>	24CV444939	Timed Out, LLC vs Liquid Restaurant and Lounge LLC	Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One; and Sanctions. Parties to appear. Before the court is Plaintiff Timed Out, LLC's ("Timed Out") motion to compel responses to the following discovery: further responses to Form Interrogatories ("FROG"); further responses to Special Interrogatories ("SPROG"); further responses to Request for Production of Documents ("RFPD"), Set One; and Motion for Sanctions against Defendant Liquid Restaurant and Lounge LLC's ("Liquid Restaurant"). On December 22, 2025, Plaintiff Timed Out filed this motion to compel further responses to <u>216 total discovery responses</u> as follows: 13 FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); 134 SPROGs (Nos. 1-134); and 69 RFPDs (Nos. 1-69). Plaintiff Timed Out also filed a motion to compel further responses to Request for Admissions ("RFA"), Nos. 1-83 that is set for hearing on August 13, 2026. In total, Plaintiff seeks to compel <u>299 further discovery responses</u> for FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); SPROG (Nos. 1-134); RFPD (Nos. 1-69), and RFA (Nos. 1-83), Set One. The Court has reviewed the plaintiff's moving papers filed on December 22, 2025; defendant Liquid Restaurant's Oppositions filed on July 2, 2026; and the plaintiff's Reply to defenses' opposition filed on July 9, 2026; as well as the pleadings. <u>Given the total number—299—of discovery at issue</u>, the Court orders the parties to meet-and-confer and submit a joint statement setting forth discovery that has been resolved and remain at issue. The Court will also discuss having this matter assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1
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